

How effective are existing disability laws (such as the Rights of Persons with Disabilities Act, 2016 in India or the IDEA in the U.S.) in ensuring equitable educational opportunities for individuals with learning disabilities?

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Abstract

The paper presents an in-depth evaluation of the effect of contemporary disability laws on the education of individuals with learning disabilities by contrasting India's Rights of Persons with Disabilities Act, 2016 (RPwD Act) with the US's Individuals with Disabilities Education Act (IDEA). Using a qualitative and literature-based approach, the research integrates various sources such as peer-reviewed articles, policy papers, court decisions, and reports from government and global organizations. The paper moves with the guidance of a rights-based and social model of the disabled framework and it looks at the legal requirements for educational access, quality of assistance, and meaningful inclusion through the lens of the actual practice. The summary of the literature indicates that both pieces of legislation have greatly improved the formal acknowledgment of learning disabilities and the accessibility of schools, however, there is still no parallel development in this area between the two regimes. The continual discrepancies between what the law aims to do and what actually happens in practice are influenced by limitations such as the lack of capacity in the institutions, various ways of identifying and certifying the persons, the unqualified teachers,

and the disparities between the different socio-economic groups. The comparative study emphasizes that the IDEA has stronger procedural safeguards and accountability mechanisms, on the one hand, and a greater inclusion requirement, but the RPwD Act has weaker enforcement, on the other hand. The paper comes to the conclusion that while disability laws have to be in place, they are not adequate alone to provide equal educational opportunities. Their power to become a force of change depends on effective implementation, continuous support for inclusive teaching, and reforms in the system that connect legal compliance with educational practice.

Introduction

It is recognised widely that the access to equitable education is foundational premise for social inclusion, economic participation, and all that being human enables an individual to do. Learning-disabled individuals, however, have always had to deal with educational systems as their foes and not as their facilitators. Learning disabilities include but are not limited to dyslexia, dyscalculia, and attention-deficit/hyperactivity disorder; they are not an indication of low intelligence but rather a difference in the way that the person thinks and that requires a different teaching approach (Snowling, 2013). Even though there is greater awareness nowadays, the students with learning disabilities have still got to break through a lot of barriers that are built into the education system that prevent them from getting a decent education. These systemic barriers include but are not limited to: delays in diagnosing the problem, lack of instructional support, stigma, and institutional neglect. In this scenario, disability law has become one among the most powerful tools of the policy aimed at correcting the wrongs in education and providing rights-based access to learning opportunities.

In the last few decades, the perception of disability has changed dramatically, and now it is considered a social issue and rights matter instead of a medical problem or a source of welfare only. If we look at the global change through the lens of the UN Convention on the Rights of Persons with Disabilities (UNCRPD), it will be apparent that the world has changed and this is even more visible with the Convention's mandate for education to be made completely inclusive at all levels (United Nations, 2006). The global normative shift has also influenced the disability laws of various countries, like India's Rights of Persons with Disabilities Act, 2016 (RPwD Act) and the United States' Individuals with Disabilities Education Act (IDEA).

These laws are officially acknowledged learning disabilities, and they obligate the government and the education system to provide reasonable accommodations, specialized support, and discrimination-free learning environments. However, on the other hand, the presence of legal protections does not guarantee that there will be equal educational results.

The impact of disability laws on the facilitation of meaningful educational inclusion still continues to stir academic and policy debates. On the one hand, Acts proclaim the adherence to progressive thinking, but on the other, case and qualitative studies indicate that the learning-impaired persons still encounter the rampant non-implementation and less-than-legal-enforcement of their rights (Singal, 2016; Yell et al., 2020). The authorities in many schools are quite understaffed and ill-equipped to deal with this situation, and there are no incentives for them to legally accommodate the situation. Furthermore, the issue is complicated by the fact that the founding of legal protections is often determined by the wider socioeconomic inequalities, which dictate the availability of diagnostic services, the strength of the parents' advocacy, and the manner in which institutions respond. Consequently, the rights claimed by the law are very often quite opposite to those experienced in reality.

At the time of year 2016, the coming into force of the RPwD Act in India signified a tremendous step towards the legal recognition of disability, since it considered a larger number of disabilities and for the first time specifically included learning disabilities. The Act supports, among other things, the integration of education, reasonable accommodation, and the government's commitment to providing teacher training and making institutions accessible (Government of India, 2016). Although the Act is very progressive, there are still worries raised by researchers regarding the gaps in its implementation, especially in the public education system, which is often overcrowded, underfunded, and characterized by regional inequalities (Singal & Muthukrishna, 2014). The effectiveness of the RPwD Act in transforming classroom practices and educational outcomes for students with learning disabilities therefore warrants careful examination.

On the other hand, the IDEA of the United States is regarded one of the most progressive legal systems that regulate special education. The right of Free Appropriate Public Education (FAPE) is assured by IDEA to the qualifying disabled pupils and this right is made operative through Individualized Education Programs (IEPs), procedural safeguards, and parental participation (U.S. Department of Education, 2019). It is a fact that IDEA has been credited for granting access to educational services to children with learning disabilities, however, it has been also criticized as being slow, inconsistency in services, and of causing racial and class disparities (Artiles et al., 2011). These disputes suggest that even powerful legal structures may not always be effective to the point of guaranteeing equal educational experiences in reality.

Therefore, this paper introduces the comparison between India and the USA regarding existing disability laws that mark the trails to equal education for people with learning disabilities, as the main area of interest. The evaluation is not limited to the traditional quantitative indicators but instead chooses a qualitative literature approach that critically

examines legal texts, policy interpretations, and scholarly opinions on implementation. The main question along with the aim of this research, whether such laws only guarantee formal equality or if they are substantially opening up an area of educational equity, is the synthesis across the fields of education, disability studies, and legal scholarship.

The major point that this dissertation expresses is that legal interventions for disabled people, such as the RPwD Act and IDEA, still show an open commitment to the integration principle, yet their effect will be very much determined by the institutional power that exists, the interpreters' attitudes and the social context. The mere granting of legal rights to children with learning disabilities will not be enough to remove such disabilities since they are deeply rooted. The author is making a significant point in the heated debates over inclusive education through a very elaborate and creative comparison and thematic study by uncovering rights-based disability law as a double-edged sword with both the capacity to bring about change and the limitations of the existing system.

Conceptual and Theoretical Framework

The interpretation of disability law in education that would be considered at least partially relevant has to come from a very solid conceptual and theoretical base. In fact, one cannot assess the use of the Rights of Persons with Disabilities Act, 2016 (RPwD Act) in India and the Individuals with Disabilities Education Act (IDEA) in the United States without first recognizing the implicit values around disability, justice, and inclusion that dictate their applications. This part will define the theoretical frameworks and concepts that will be massively used in the analysis, especially in the case of the learning disabilities that are being talked about in the current disability studies and educational policymakers debates.

The main concern of disability studies is to clarify between the medical model and the social model of disability. The medical model sees disability as a personal shortcoming or a health issue that must be diagnosed and then treated or cured with the help of medical professionals. This view, for example, sees learning disabilities as mainly cognitive difficulties that exist in the individual student and the solutions offered revolve around labeling, remediation, and even isolation through special education settings (Oliver, 1990; Shakespeare, 2014). Nonetheless, the medical model of learning disabilities has been one that has brought forth the issue of recognition and diagnosis; however, it has also faced severe criticism for the stigma it continues to perpetuate and the thereby neglect of the structural and institutional barriers that determine educational exclusion.

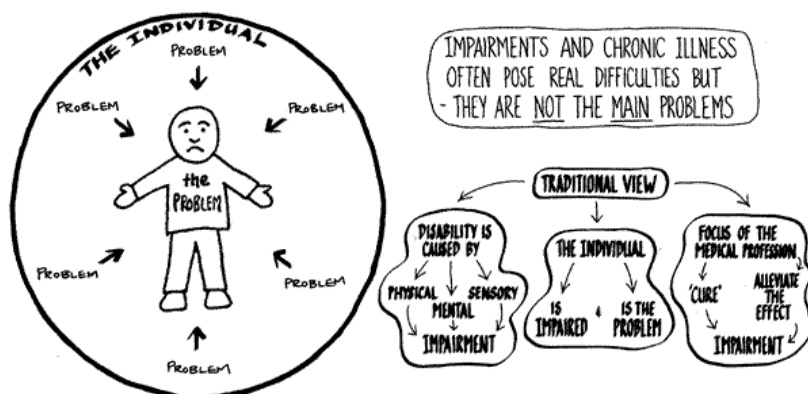
The social model of disability, on the other hand, takes a different stance and presents disability as a consequence of the social arrangement rather than individual disqualification. This view of disability holds that persons are not disabled by their different cognitive abilities or brain functions but rather by the rigid education system, the inaccessible curriculum, and the negative attitudes of the society (Oliver, 1996). When it comes to learning disabilities, the social model directs the discussion towards the methods of teaching, the type of assessment, and the norms of the institution that favor certain ways of learning over others instead of focusing on the learner's limitations. The existing understanding of disability has a positive impact and also a negative impact on the enactment of modern disability laws such as the RPwD Act and IDEA, which both have acknowledged the existence of environmental and systemic barriers in limiting educational participation (Government of India, 2016; U.S. Department of Education, 2017).

A rights-based approach applied to the social model of disability gives further basis to the evaluation of educational laws or grants new one. The latter, hinging on the international human rights treaties, e.g., the UN Convention on the Rights of Persons with Disabilities

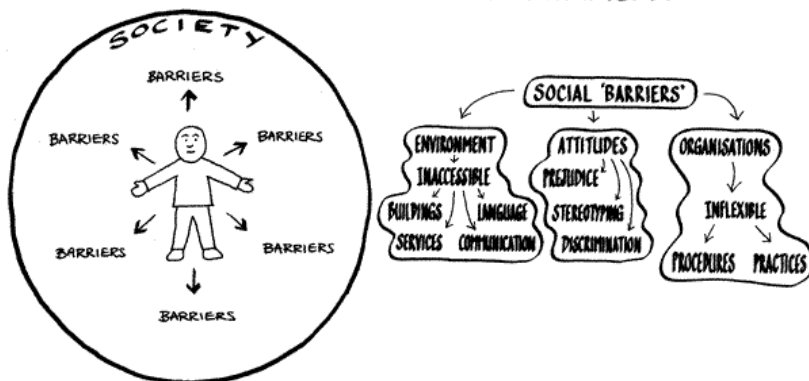
(UNCRPD), regards the right of access to education as a right protected by law, thus not merely a welfare or charity issue (United Nations, 2006). According to the UNCRPD, specifically Article 24, disabled persons are entitled to inclusive education at all levels, and such education includes necessary accommodation and support measures being provided according to individuals' needs. The UNCRPD is endorsed by both India and the United States, and the domestic legal frameworks regarding learning disabilities have been profoundly influenced by its principles. Consequently, the rights-based approach allows this study not only to explore the theoretical existence of educational possibilities but also to check if the legal system has provided effective means to attain these rights in real life.

Medical and Social Models of Disability

THE MEDICAL MODEL OF DISABILITY



THE SOCIAL MODEL OF DISABILITY



In the another case of the theoretical framework, the concept of educational equity is pointed out as one of the important aspects. It is so because educational equity is a principle that recognizes that different learners may need different kinds of support to attain similar educational outcomes, thus differentiating it from equality. Some researchers have even argued that treating all students equally may reinforce disadvantage in case the systemic inequities are ignored (Unterhalter, 2009). For instance, if a student with learning disabilities is treated with equity he/she will receive different types of support such as custom-made teaching strategies, accommodation, and evaluation changes which will enable him/her to take part in mainstream education successfully.

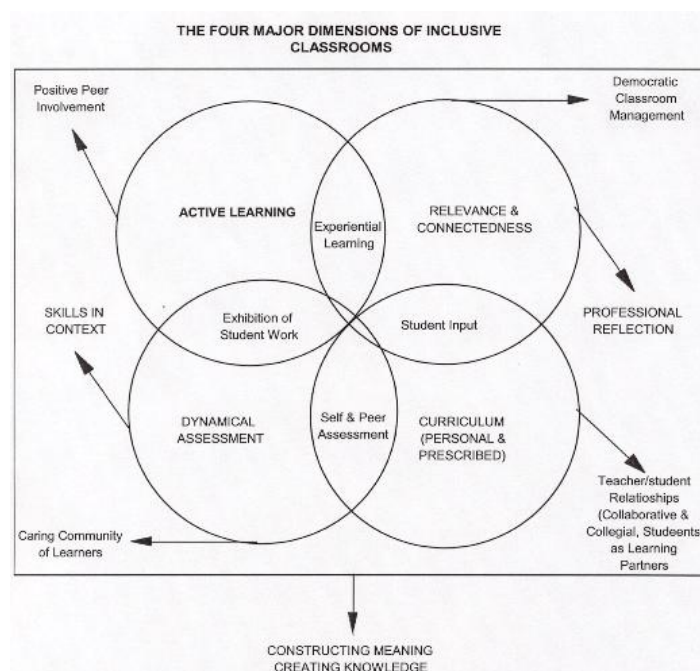
The Individuals with Disabilities Education Act (IDEA) and other similar laws clearly implement the principle of individualized education through various means such as Individualized Education Programs (IEPs) that cater to a disabled student's specific learning needs (Yell, Rogers, & Lodge Rogers, 1998). In the same way, the RPwD Act not only supports but requires reasonable accommodation and inclusive education, thus making it clear that the authorities now prefer equity over uniformity (Government of India, 2016).

Moreover, the concept of inclusive education is the third pillar supporting this research. Inclusion is not only about making the environment of the regular school accessible for physically challenged children but also about their active participation and the feeling of belonging and the getting of the same learning outcomes as their peers. The educationists contend that if inclusion is to be effective it must be spoilt for the whole system through flexibility of curriculum, preservice and inservice teacher training, and accountability of the institutions (Ainscow, Booth, & Dyson, 2006). For the primary school-aged children with learning disabilities, the idea of inclusion takes away the traditional phonics and standardised testing pedagogical methods for determining academic success. Understanding the legal implications of disability laws from the inclusion perspective implies that one has to see

whether the legal systems are actually open to change or just allowing the access without any modifications in the education that is imparted.

The concept of unnecessary burden removal closely associated with inclusion that for it is the continuation of reasonable accommodation which is one of the core elements of both the RPwD Act and IDEA. Reasonable accommodation is the stipulation of necessary and proper changes that do not impose an excessive or difficult burden, thereby facilitating the participation of people with disabilities in exercising their rights equally with others (United Nations, 2006). In the context of schools, accommodations for learning disabilities might be the use of different methods of assessment, providing assistive technologies or changing the way teaching is done. The function of disability laws can thus be evaluated by looking at the clarity of the accommodation obligations, the consistency of their application, and the ways of resolving the disputes about accommodation through legal and institutional frameworks.

Core Dimensions of Inclusive Classroom Practice



The UDL, or Universal Design for Learning, remains as an important adjunct to the legal analysis. UDL is the slogan for the principle of making the teaching-learning process to be more flexible and responsive to the diverse learning needs of the students, which in turn will minimize the need for addressing individuals with special needs (Meyer, Rose, & Gordon, 2014). The principle of UDL is not always made explicit in laws, but it is very close to the aims of inclusive and equitable education founded in disability rights. The study that is based on UDL concept can highlight the inquiry on the legal policies currently in place whether they support or assist an inclusive approach that is active and system-wide or if they are still relying on reactive and individual accommodations.

The theories, when looked at together, provide a comprehensive framework for evaluating the influence of disability law on the equal opportunity access to education for people with learning disabilities. The social model of disability, a rights-based approach, principles of educational equity, and inclusive pedagogy are integrated into this study, which thus positions the analysis of law in the midst of larger discussions concerning justice, participation, and educational institutional accountability. The theoretical framework thus created is applied to the following comparison of legislative measures and the scholarly criticisms of the implementation of these measures in India and the USA.

Methodology and Research Design

The proposed research evaluates existing disability laws as barriers or facilitators to equitable access to education for the learning disabled by means of a qualitative literature-based research design. Given the normative character of the research question, the legal and policy-based qualitative approach is most fitting as it facilitates in-depth interpretation of the relevant legal texts and technical matters. The study does not conduct surveys, interviews, or

statistical analyses but rather through rigorous and structured interaction with current academic and government literature, it generates analytical insights.

The study is mostly doctrinal and interpretive, utilizing primarily the frameworks of disability law, education policy, and sociology together as the main areas of focus. The main sources are journal articles, books from the university press, official legal texts such as the Rights of Persons with Disabilities Act, 2016 in India and the Individuals with Disabilities Education Act (IDEA) in the United States, government and parliament reports, court rulings, and reports from international bodies like UNESCO and the United Nations. All these sources are easily accessible and frequently referred to in the discipline, thus, providing transparency and the possibility of replication. Literature selection was based on the topics of learning disabilities, educational inclusion, and legal implementation as well as the trustworthiness and academic reputation of the sources.

The analysis of the study will be based on the thematic analysis method combined with the comparative legal analysis technique. Through close examination of the chosen texts, the themes of the right to education, reasonable adjustment, institution readiness, teacher training, and unequal distribution of resources for implementation were repeatedly discovered. The themes structure the basis for assessing the extent to which the judicial pronouncements have been incorporated into the school practices. The comparison of the Indian and U.S. contexts allows recognizing both the specific challenges of each jurisdiction and the larger structural patterns, without a priori assumption that one legal system embodies a universal standard (Arstein-Kerslake & Flynn, 2017).

A significant methodological presupposition of this paper is that it is not possible to judge the effectiveness of laws regarding disability only by their official statements. Thus, the research gives equal weight to literature focusing on implementation, such as empirical

studies, policy evaluations, and court interpretations that provide insight into the operationalization of legal rights in schools. This is also the case in socio-legal studies, which consider law as a vibrant social institution that is formed by the capacity of administration, the practices of professionals, and the attitudes of society rather than as a set of regulations that inevitably apply (Epp, 2010).

The method provides the benefit of being very detailed in its analysis and is capable of detecting the different contexts involved, but at the same time, it has the disadvantage of being extremely complicated. It is true that primary data is missing, and thus, the study will be dependent on the amount and quality of previous research, which may not be constant across different fields or educational levels. Furthermore, the disparity in the availability of data, particularly in the Global South, may hinder the possibility of making direct comparisons. However, the researchers are going to overcome these limitations by, on the one hand, triangulating various sources and perspectives and, on the other hand, providing a well-grounded assessment that is not biased and that is based on established scholarship. In summary, the qualitative, literature-based research design employed in this paper is fitting for the core research question that it aimed to answer. It paves the way for the critical assessment of disability laws from the standpoint of their role as legal instruments and as the facilitators or barriers to access to the education system for students with learning difficulties.

Overview of Legal Frameworks Governing Learning Disabilities

The legal frameworks that govern the education of people with learning disabilities create a very important connection between the rights of disabled people and educational policies. In India as well as in the United States, over the years, disability law has changed from being a welfare-based approach to a rights-based one eventually through which learning

disabilities are acknowledged as conditions that deserve legally enforceable educational accommodations. The following segment gives a summary of the two main legal documents being discussed—the Rights of Persons with Disabilities Act, 2016 (RPwD Act) in India and the Individuals with Disabilities Education Act (IDEA) in the United States—by emphasizing how the learning disabilities are viewed by each framework, how the inclusive education is theoretically mandated and practically supported by the models of implementation and accountability established by the law.

The Rights of Persons with Disabilities Act, 2016 has a major impact on how disabilities are recognized and protected by law in India. It has repealed the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 which was the previous law that recognized disabled people. The RPwD Act which was enacted to harmonize the domestic legal system with India's commitments under the UNCRPD, provides a broad and dynamic definition of disability based on the social and rights-based model (Government of India, 2016). A very important feature of the Act is that it acknowledges “specific learning disabilities” like dyslexia, dysgraphia, dyscalculia, dyspraxia, and developmental aphasia etc. This act has therefore granted a legal status that was not available before, to a category that had suffered from underdiagnosis and had been pushed to the margins of Indian education systems (Bhan & Mahajan, 2017).

The RPwD Act deals with the matter of education in such a way that the government along with the local authorities must make sure that children with disabilities receive inclusive education at all levels of schooling, i.e., up to higher education. The Act obliges educational institutions under Section 16 to provide the necessary accommodations, support, infrastructure, and teaching methods according to the needs of the disabled students (Government of India, 2016). Besides, one of the objectives of the Act is teacher training which calls for the government to provide capacity-building programmes that will raise the

awareness of the educators about the inclusive pedagogical practices. Besides, higher education institutions are instructed to relax admission criteria, examination regulations and the duration of courses when necessary. This is an indication of the realization that structural flexibility is a key factor in achieving educational equity.

Notwithstanding the fact that they are all very much encouraging measures, the RPwD Act relies on the state governments and educational authorities to lead the way in implanting the law therefore, there is a significant variation in the enforcement and the result of the law in different parts of the country. Some scholars have indicated that the Act not only forms a strong normative framework but also does not provide any guidance in the area of the standardised assessment procedures for learning disabilities, and moreover, it has not set up a good monitoring mechanism to ascertain that the educational institutions are observing the law (Mehrotra, 2019; Singal, 2020). This has led the impact of the law to be determined more by such factors as administrative capacity, institutional awareness, and judicial intervention rather than by systematic enforcement.

Conversely, the Individuals with Disabilities Education Act (IDEA) of the US offers a complete legal framework for the disabled students' education that includes students with learning disabilities. The birth of this law goes back to the Education for All Handicapped Children Act of 1975, and since then it has been subjected to various reauthorizations which have led to the expansion of its protection and rights. Under this law, the term "specific learning disability" is used to refer to a condition in which one or more of the core psychological processes that are involved in understanding or using language is impaired and may be indicated by difficulties in reading, writing, listening, speaking, reasoning or performing in mathematics (U.S. Department of Education, 2019).

IDEA has declared the provision of a Free Appropriate Public Education (FAPE) as one of its main pillars to all eligible children with disabilities. The right to a FAPE is realized through an Individualized Education Program (IEP), which is a legal document that holds educators, specialists, and parents accountable to each other for the learning objectives, accommodations, and support services that are determined to meet the needs of every student (Yell, Rogers, & Lodge Rogers, 2019). Besides that, the law dictates that a student should always be positioned in the “least restrictive environment” which, in practice, means that teachers would take the child with special needs to the regular class as much as he or she could follow and thereby honoring the rule of inclusion rather than segregation.

The IDEA framework has embraced the paradigm of procedural safeguards surrounding, control, and cooperation with parents as the main features of its implementation. The list of these rights includes due process hearings, independent educational evaluations, and court review when the family and the school district have a conflict. Empirical and legal studies have consistently found that these mechanisms of enforcement are a distinguishing feature of IDEA among disability laws, as they turn educational entitlements from mere aspirational policy goals into rights that can be enforced (Zirkel, 2017). In contrast, critics state that the complicated nature of the law and its dependence on litigation might disadvantage poor families and, in this way, contribute to the creation of fairness problems within the system (Connor & Ferri, 2020).

By comparison, the RPwD Act and IDEA depict a contrast in philosophy as far as turning the disability rights into education practice is concerned. Both pieces of legislation take the same position as they concede the existence of learning disabilities and stress the need for integration; however, the former offers a detailed, and bureaucratically complex system, while the latter takes a general rights-based viewpoint with an enforcement mechanism that is relatively weak. The gap between the two regimes is a great factor in the

practical realization of educational equity, particularly for students with learning disabilities requiring constant and personalized support. The legal frameworks should be engaged with when assessing not only the ultimate goal of disability legislation but also the ability of such legislation to create educational experiences that are substantial and fair.

Thematic Analysis

The academic literature on disability law and inclusive education reveals that there is a rather complicated legal interplay between the rights of the disabled, their implementation, and their educational success for those with learning disabilities. Recognition that law frameworks such as the RPwD Act and IDEA are critical legal tools that are intended to disrupt the whole practice of excluding students with disabilities and thus, promoting equal access to learning has been the main idea in this literature. However, different types of studies have shown that the existence of legal provisions is not enough to assure equal outcomes; the continuing structural, institutional, and socio-cultural barriers are at work creating the conditions under which these people with disabilities will be treated in accordance with the law and their experience will be shaped by the legal system they live in.

Exploring the literature one of the main points regarding the effectiveness of disability law in education is the gap between the voice of the policy and the reality of the situation on the ground, particularly in the case of resource-poor environments and limited institutional capacity. In the case of India, recent analyses of the policies show that the promise of inclusive education made by the RPwD Act is still obstructed by the fact that at the school level, the implementation is still not up to the mark. Das and Sarkar's (2025) critical policy analysis of the RPwD Act's inclusive education argues that although the law makes a rights-based commitment to barrier-free education, the majority of schools lack the very basic

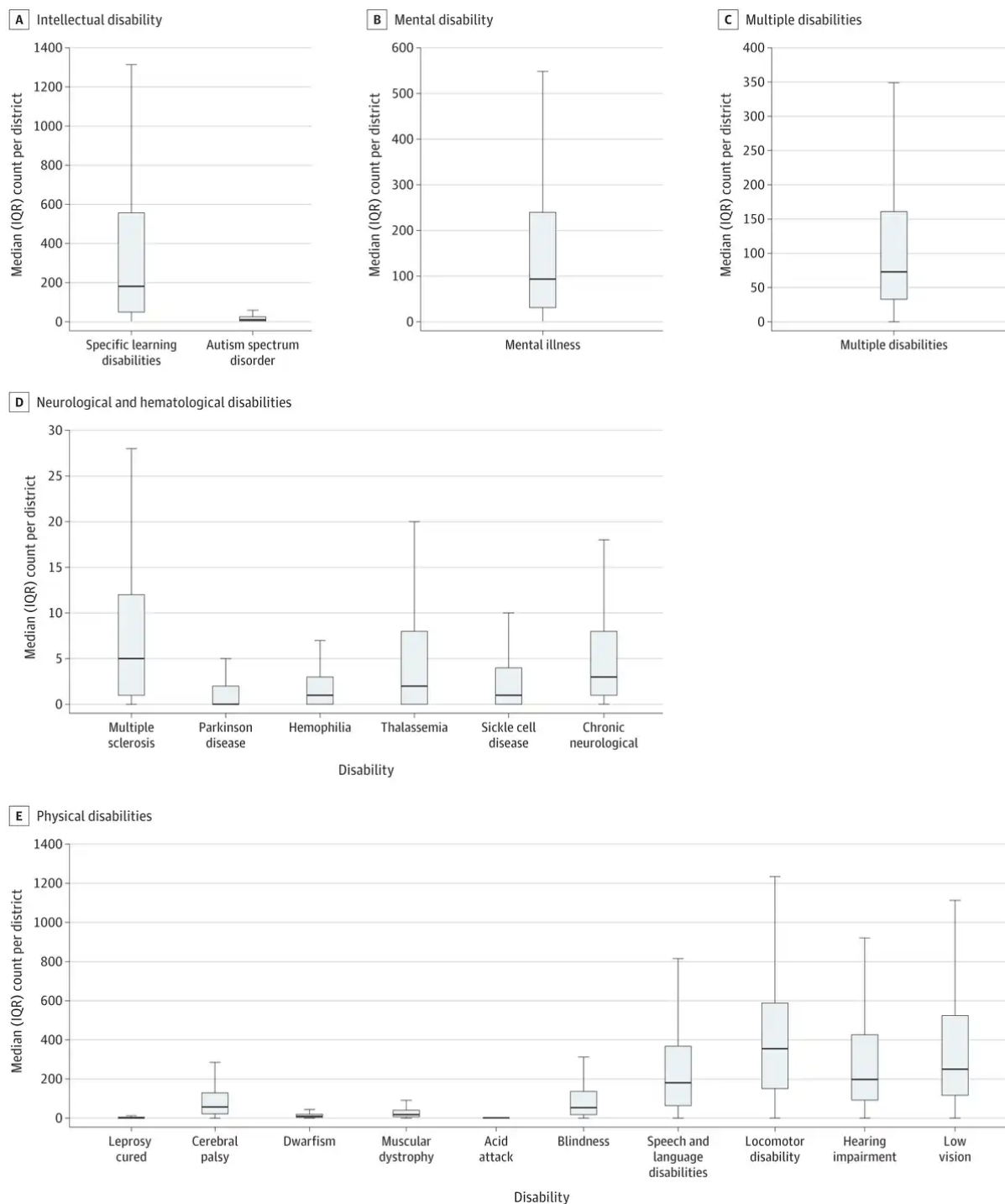
accessibility infrastructure, teacher training in inclusive practices, and assistive technologies that are essential for meaningful inclusion of students with disabilities (including those with specific learning difficulties). They digest administrative datasets which imply that compliance with the Act is often merely symbolic rather than genuine, indicating a large gap in implementation (Das & Sarkar, 2025).

Other Indian studies show similar patterns. The research on the RPwD Act implementation in primary and secondary schools points to widespread difficulties in teacher readiness, the lack of proper monitoring and access to resources for accommodating various learning needs. In Mizoram, an instance of this is that teachers in elementary schools may be officially aware of their duties under the RPwD Act but they do not have the pedagogical skills and institutional support to offer differently shaped teachings to students with learning disabilities (Ralte & Hnamte, 2025). Moreover, it is stated in the literature that the areas are not only facing the problem of shortage of funds for special educators and assistive materials but also the weak monitoring system and limited professional development opportunities, all making the statutory mandate for inclusive education a difficult one to implement (Nath & Rajak, 2025).

One more issue that is often repeated in the literature is the legal recognition and certification of learning disabilities, a procedure field that directly impacts access to education and support. Indian scholars have emphasized that even though the RPwD Act has recognized specific learning disabilities as a disability category, the diagnostic inconsistencies and the procedures associated lead to excessive waiting or incorrect certification which hinders the student's right to educational support (Kumar & Dixit, 2025). A study published in the Indian Journal of Psychiatry has also voiced this concern, indicating that current diagnostic scales and guidelines might not be capable of adequately recognizing learning disabilities as the sole reason for the student's difficulty, hence, creating

misclassification and confusion among teachers and parents. (Rao et al., 2024). Such procedural shortcomings undermine the agency that learning disabled students are slated to receive under the law and raise questions about whether legal protection in text translates to realised educational support.

District-Level Variation in Reported Disability Categories in India



The figure presents median and interquartile ranges of district-level counts across major disability categories, illustrating substantial variation in identification and reporting.

One of the main differences in evaluating legislative effectiveness from various perspectives is the research related to the IDEA in the US, where for decades scholars have been weighing both the positives along with the negatives of the law in terms of educational outcomes and their variations. The literature on IDEA scholars has never failed to highlight the law's transformative impact on the accessibility of public education for children with disabilities, which included the right of schools to offer a Free Appropriate Public Education (FAPE) in the Least Restrictive Environment (LRE), the drafting of individualized education plans (IEPs) that are customized according to students' needs, and, in general, the creation of an inclusive atmosphere through teaching that is adjusted to the capability of each child. The Supreme Court rulings of *Endrew F. v. Douglas County School District RE-1* have played a role in elucidating that the IDEA's core obligation concerning educational opportunities guarantees programs "reasonably calculated to enable a child to make progress appropriate in light of the child's circumstances," thus setting a higher benchmark than just the minimal benefit standard.

Nonetheless, the research has demonstrated that the presence of legal rights is not sufficient to ensure fair academic results unless institutional capacity and teaching assistance are also provided simultaneously. National and academic reports indicate that although the Individuals with Disabilities Education Act (IDEA) has largely raised the number of students with disabilities in schools and the availability of services for them, it has not always guaranteed equal educational attainment or post-school success. For instance, comprehensive literature reviews point out a difference in the quality of academic and social outcomes in the

case of inclusive general educational settings versus segregated special education placements and argue that students with disabilities are receiving both academic and social benefits from inclusive teaching. The inclusive education literature endorses this by reporting that the special educational needs students who are in inclusive classes usually show either the same or higher level of academic achievement as compared to their peers in segregated classes, besides a lot more social interaction and peer relationships (Dessementet et al., 2013; de Bruin, 2019).

At the same time, legal studies have shown the same general trend in inequality among the groups that have been affected. To give an example, the researchers have noticed that students with disabilities still lag behind the non-disabled ones in terms of primary educational indicators such as graduation rates, standardised testing scores, and enrolment in higher education. This fact implies that the legal exclusion might not be the only cause of the existing imbalances (Wells, 2025). Furthermore, the law's application has not been uniformly distributed across social classes and hence districts that lack the necessary resources are not even capable of providing the full range of services that the IDEA planned. The existing disparities in the areas such as scarcity of money and lack of trained personnel might act as barriers to the law reaching its objective of providing equal educational opportunities for students with disabilities (Raj, 2022).

One more significant research field has been dedicated to the studying and analyzing interactions between the laws on disability in India and the U.S. along with the teaching practices and systems that exist and shape the school environment and the teacher's behaviors. The inclusive education literature almost always claims that the legal mandates like RPwD Act and IDEA are the great sources of help when they are completed with teacher professional growth, curriculum adjustments and the use of inclusive teaching methods catering to various learning needs. For example, Universal Design for Instruction (UDI) has

been put forward as one method of teaching that can, when partnered with legal compliance, recommendatively generate learning environments that are open to all students instead of just being accommodating to those with special demands. Such methods support the more general argument in research that legal compliance should be put into larger educational reform strategies that emphasize instructional quality, teacher development, and system responsiveness to learner diversity.

Socio-cultural attitudes and people's awareness of the disability laws have been underlined as very important factors to consider in the effectiveness of such laws in regional and international literature. The scholars who are doing research on the educational context in India have observed that the high society stigma and the very low level of awareness among teachers, school heads, and parents are the major reasons for the non-implementation of the legal rights in practice. The attitude barriers may not only prevent the creation of truly inclusive classroom cultures but also result in scenarios where only minimal compliance with the law is observed, and the students with learning disabilities are not allowed to take part in the educational process meaningfully (Vidhi Legal Policy Centre report, 2024). Similarly, research from India and the U.S. indicates that inclusive education policies require not only the legal framework but also the active involvement of all stakeholders, community support, and change in cultures to yield fair results.

The climatic and socio-cultural factors of the location are having an impact on the educational outcome and legal effectiveness studies significantly. The enactment of laws like the RPwD Act and IDEA has opened up a new field where not only the legal protection is additional but also the receiving by the institutions is the right of the learners with disabilities, thereby creating an inclusive educational opportunity. There is still a considerable gap between the law and actual educational experience. The factors that are constantly mediating the legal rights to just learning outcomes are the lack of resources; insufficient pedagogical

skills, socio-cultural biases, and complicated processes for diagnosis. The research areas in India and the USA have stressed that it is necessary to move from mere legal compliance to integration of inclusive, well-resourced and institutionalised support over a long period educational practices. Only through this holistic integration could the promise of disability laws in the form of improved educational achievements, participation, and long-term success of individuals with learning disabilities be realised to the fullest.

Comparative Analysis: India and the United States

A comparative investigation of India's Rights of Persons with Disabilities Act, 2016 (RPwD Act) and the United States' Individuals with Disabilities Education Act (IDEA) reveals that although the two laws concerning disabilities differ in their methods, they do have some common ground when it comes to providing equal educational opportunities for those with learning disabilities. The rights-based principles serve as a foundation for these laws and the international human rights norms, particularly the United Nations Convention on the Rights of Persons with Disabilities (UNCRPD), have played a significant role in their development; however, the differences in the countries' institutional capacities, enforcement mechanisms, socio-economic and educational governance structures are factors that contribute to the laws' varying degrees of effectiveness.

Legal intent perspective suggests that both India and the United States throw their full weight behind the idea of inclusive education for the disabled as a fundamental human right. The RPwD Act requires children with disabilities to be enrolled in the nearest inclusive school and that governments and educational institutions provide reasonable accommodation and necessary support to them (Government of India, 2016). A similar approach is taken through the Free Appropriate Public Education (FAPE) and Individualized Education

Programs (IEPs) (U.S. Department of Education, 2019) under IDEA, which ensures that all students with disabilities are guaranteed to get the equal and specially customized educational services that suit their particular needs, including those with specific learning disabilities. The shift towards inclusion represented by legal change is evident in both cases and corresponds to the previously discussed social model of disability.

Although both sides of the Atlantic share the same basic principles, the different capacities for implementation are still pointed out by the literature as a major issue. The United States' IDEA is firmly rooted in a strong administrative and legal system that can be considered as being well-established. Among other things, school districts are required by law to identify students who qualify to participate in special educational services, to draw up Individual Education Programs (IEPs) with multidisciplinary teams, and to provide parents with procedural safeguards through which they can challenge inadequate provision via due process hearings or lawsuits (Zirkel, 2017). Various empirical studies have confirmed that the enforcement of these mechanisms, albeit imperfectly, leads to a fairly high level of accountability and consistency across states (Gilmour, 2025). On the other hand, the research on the RPwD Act has highlighted that the diversity in India's education system and lack of uniformity in the capacity of different states result in a large difference in the quality of implementation. Though the Act places responsibilities on the schools and the government, the methods of enforcement are considerably weaker, and a large number of parents and children are still oblivious to their legal rights (Das & Sarkar, 2025).

Another major difference in the implementation process is the way learning disabilities are identified and assessed. The U.S. scenario dictates that IDEA decides through the detailed procedural guidelines, which are followed by the skilled school psychologists and the special educators' support, what specific learning disabilities are to be recognized and where the client should be placed. Even though discussions around over-identification, racial

or socio-economic bias persist, the existence of structured identification systems is believed to allow earlier interventions and more systematic support (Morgan et al., 2018). In contrast, Indian scholars point out that there is still a lot of uncertainty and a lack of consistency in the diagnostic procedures for specific learning disabilities.

The unavailability of standard assessment tools implemented across the board and professionals who are not well-trained often causes the issue of certification to be prolonged, thus denying students their right to examination concessions or instructional support which are the legally mandated accommodations (Kumar & Dixit, 2025). This gap in the procedure greatly diminishes the practical effectiveness of the RPwD Act when compared to IDEA.

The two systems are also distinguished by the difference in funding and resource allocation. Federal funding mechanisms support IDEA at least in principle, as a financial share between federal, state and local governments for special education. The debate on underfunding continues, yet the availability of earmarked funds and skilled personnel gives rise to a more organized service delivery (U.S. Government Accountability Office, 2020). On the other hand, research from India has pointed out that the funding for inclusive education has been more often insufficient and uneven, especially in the rural and economically disadvantaged areas. Most schools are without even the basic assistive technologies, not to mention the absence of trained special educators and inclusive learning materials, which hampers their capacity to meet the statutory requirements under the RPwD Act (Nath & Rajak, 2025). Consequently, the concept of inclusion in India is more often than not, a mere token rather than a reality.

The comparative effectiveness of disability laws is influenced by socio-cultural factors as well. In India, where disability and learning difficulties still have a social stigma, such factors influence parental disclosure, teacher's and peers' attitudes, and interactions. The

qualitative studies show that there might be rights legally existing but still negative social perceptions may inhibit families to seek official certificates or accommodation which results in the law's limited reach (Vidhi Legal Policy Centre, 2024). In the U.S., stigma has not been completely eradicated but the public's awareness and acceptance of learning disabilities as legitimate educational needs have been increased to a greater extent by the years-long disability rights advocacy and court litigation. This cultural context, together with stronger legal literacy of parents, makes the enforceability of IDEA in practice stronger (Turnbull et al., 2016).

Another aspect that differentiates the two frameworks is judicial interpretation. U.S. courts have been the main players in determining the substantive meaning of IDEA and made it evident particularly in the case of *Endrew F. v. Douglas County School District* (2017) which established the standard for educational benefit under FAPE. Legal research indicated that jurisprudence has mostly been the cause of the strengthening of accountability and of the clarifying of schools' obligations towards students with disabilities (Zirkel, 2018). The Indian judiciary has sometimes stepped in to protect the rights of disabled children in education, but the litigation on disabilities that specifically pertain to learning is still limited and the interpretation of the RPwD Act's provisions in the judicial realm is yet to progress. The relative lack of case law operates to reduce the Act's powers in terms of deterrence and correction.

Nonetheless, the comparative literature has also been very cautious about considering the U.S. model as the best one. One of the criticisms against IDEA is that its procedural complexity is a barrier that more resourceful and legally better educated families can overcome, thus causing the very inequalities it was meant to fight (Raj, 2022). Furthermore, even with stronger enforcement, the U.S. remains divided as far as outcomes are concerned, with disabled students having consistently lower graduation rates and post-secondary

participation compared to their non-disabled counterparts (Gilmour, 2025). Although the robust legal frameworks are present, they still do not ensure that all people get the same quality of education since the inequalities that are structural cannot be totally wiped out.

Thus, the comparative study has revealed that India and the U.S. both have strong legal provisions ensuring equal educational rights for those bottlenecked by learning disabilities, but the degree of real-world impact is very much different between the countries. The latter enjoys the fruits of more vigorous enforcement, better institutional capacity, higher legal awareness and other factors, while the former suffers from poor implementation, resource shortages, cultural barriers, etc. At the same time, the consistent outcome gaps in the U.S. show that even perfectly set-up legal systems have their drawbacks. So, the comparative evidence has pointed at a more general conclusion that disability laws are necessary but not sufficient for educational equity; their success very much depends on factors like administrative capacity, cultural acceptance, resource commitment, sustained institutional support, etc.

Gaps, Challenges, and Structural Limitations

Nevertheless, the positive intention and rights-based approach of law for persons with disabilities like India's Rights of Persons with Disabilities Act, 2016 (RPwD Act), and The Individuals with Disabilities Act (IDEA) in the US, have not managed to make a difference in the literature which still points out quite significantly the gaps and structural limitations that affect the effectiveness of these laws in providing equal educational opportunities for people with learning disabilities. The struggles exist in, and are, the legal, institutional, pedagogical, and socio-cultural dimensions and they all weaken the claim that the statutory frameworks alone can lead to educational equity in the real sense.

One of the most common mentions as a cause of gap in both Indian and U.S. contexts is the long-lasting separation between the law's aim and the reality of its application. On the one hand, both the laws create educational institutions' comprehensive obligations; however, on the other hand, scholars point out that the enforcement mechanisms are still quite uneven in some aspects and, in many cases, are underfunded. There is no strong, uniformly applied monitoring framework in the RPwD Act in India to ensure compliance across states and educational institutions that eventually leads to large disparities across the country in the provision of inclusive education (Das & Sarkar, 2025). Research shows that not only are many schools formally acknowledging inclusive education mandates but also they are doing nothing to put them into practice through such actions as making changes to the curriculum, providing the necessary facilities and equipment, or employing trained special educators (Vidhi Legal Policy Centre, 2024). In a very practical way, that gap reveals a major structural flaw where compliance to the law is seen as nothing but a routine process and not as a factor that positively influences the educational reform.

The identification, certification and recognition of learning disabilities is the second biggest obstacle. The literature reports that the long diagnosis and certification that the students must go through make it very hard for them to receive the needed accommodative measures that the law assures. A similar situation is noted in India where the difference in diagnostic criteria, insufficient trained professionals, and the bureaucracy often lead to late or mistaken identification of specific learning disabilities making the students less eligible for educational support and accommodation under the RPwD Act (Kumar & Dixit, 2025). The very same issues are also present in the U.S. scenario, where the difference in identification rates among racial, linguistic, and socio-economic groups has been pointed by researchers to be not only a sign of over-identification but also that of under-identification within the eligibility framework of IDEA (Raj, 2022). More than that, these procedural hurdles indicate

that the legal rights could be too expensive if there are no fair and reliable gatekeeping methods available.

The preparedness of teachers and the capacity of the institution are another critical structural limitation that the literature has identified. Teachers in general are often found to lack the necessary training in inclusive pedagogy and differentiation for students with learning disabilities across the two jurisdictions. The professional training of teachers on inclusive practices, both pre and in-service, is very limited in India, which seriously hampers the effective realization of the RPwD Act, especially in government and rural schools (Ralte & Hnamte, 2025).

In the United States, IDEA requires school districts to provide individualized education plans and at the same time research has pointed out that IEP implementation is still taking place in varied quality across the board depending on school resources, administrative support and teacher expertise (Gilmour, 2025). This circumstance implies that even if there are legal dictates but no corresponding investment in human capital to the full extent, the outcome is likely to be mere compliance with the procedure and no major change in the teaching methodology.

The socio-economic gap between the rich and the poor has further deepened the issue of disability laws being a major factor in granting equal educational opportunities across the board. The evidence from both contexts indicates that students coming from economically disadvantaged families are the ones that suffer the most as they find it almost impossible to access diagnostic service, legal advice and educational accommodation. In India, poverty and disability coupled with regional underdevelopment lead to the closure of learning-disabled students even further from the benefit envisioned by the RPwD Act (Nath & Rajak, 2025). On the other hand, U.S. research points out that under-funded school districts are finding it

hard to comply with the requirements of IDEA thus making it difficult for students with disabilities in high-poverty neighbourhoods to progress academically(Wells, 2025). Such structural inequities indicate that disability legislation is subject to socio-economic influences which in turn, either facilitate or limit its effectiveness.

In 2024 the Vidhi Legal Policy Centre pointed out that stigma associated with disability in India together with limited understanding and awareness of the problem among parents and teachers usually prevent timely and proper adjustments in the case of learning disabilities, thus diminishing the effect of the legal rights. Similarly in the U.S., but mainly in the context of special education litigation, an adversarial relationship between families and the school system is said to have shifted the focus from collaborative educational planning to procedural disputes, and the legal system is being questioned for not being able to deal with the situation (Raj, 2022). All this shows that the law has not yet been able to eliminate certain prevailing attitudes and norms in society and institutions.

Therefore, the scholars are suggesting that, notwithstanding the importance of the legal and moral right of disability laws, the right cannot be translated into actual educational opportunities due to the gaps in the enforcement, weak institutional capacity, poor access to procedures, and the prevailing socio-economic conditions. The overcoming of these difficulties may call for a mixture of reforms that not just require adherence to regulations but also include the professional development (training) of teachers, making administrators responsible, allocation of resources, and a complete change in the culture of the educational system.

Policy and Educational Practice Implications

The consensus among the studies is that the disability laws such as India's Rights of Persons with Disabilities Act, 2016 and the U.S. Individuals with Disabilities Education Act have greatly magnified the legal recognition of learning disabilities, however, the laws' influence on access to quality education is contingent mostly on how well the policy intentions get translated into educational practice. To this end, one common requirement of policy across borders is the need to change from the restrictive compliance-based approach to a systemic inclusion model that fuses legal requirements with pedagogical reform, accountability of institutions, and continuous allocation of resources for capacity building. If laws are limited to informal assurances without strong implementation strategies, they would be producing mere symbolic inclusion rather than real educational equity.

The literature from the policy point of view has shown that it is very essential to strengthening the institutional mechanisms responsible for the implementation and oversight. In India, for example, the education sector scholars are arguing that decentralized governance structures need better coordination between the central, state, and local authorities to properly enforce the RPwD Act provisions across the regions (Vidhi Legal Policy Centre, 2024). Poor monitoring systems and the unavailability of measurable inclusion indicators often create difficulties in determining the fulfillment of the statutory obligations concerning reasonable accommodation, accessibility, and teacher training. The policy frameworks would thus gain from the inclusion of outcome-oriented benchmarks, such as school-level inclusion audits and transparent reporting mechanisms, which can help in shifting the focus from formal compliance to educational impact (Das & Sarkar, 2025).

A strong enforcement structure under IDEA does not prevent inequities in the United States school districts, and literature points to the fact that these variations are mainly caused

by differences in funding and administrative expertise. Besides these disparities in funding, federal and state authorities need to revisit the issue by moving the funding formulas and increasing the technical assistance to the resource-deprived districts, particularly those serving students with disabilities from low-income and minority backgrounds (Gilmour, 2025). Imposing disability laws in the education systems might yield equitable outcomes even in jurisdictions with well-established legal frameworks but that would not be the case without addressing the broad structural inequalities in the education systems.

The significance of implications for educational practice is on par with that of the previous statement. The research has shown time and again that teachers are the main determinants of whether or not legal rights will be of any use to students with learning disabilities in terms of the quality of their learning experiences. But based on studies from India and the US, it is found that there are still significant gaps in the teachers' preparation for the need of inclusive education, especially in the areas of identifying learning disabilities, adapting curricula, and implementing differentiated instruction (Ralte & Hnamte, 2025). The results imply that teacher education programs and in-service professional development must be systematically connected with disability legislation, thus ensuring that educators are not only legally aware but also having the practical pedagogical skills grounded in the inclusive principles.

Universal Design for Learning (UDL) and Universal Design for Instruction are inclusive instructional frameworks that have been frequently cited in literature as effective complements to disability law, because they change the focus from individual accommodation to a proactive curriculum design that is already aware of the different types of learners (CAST, 2018). Incorporating such methods into national curriculum frameworks and teacher training policies would not only lessen the necessity of reactive, diagnosis-based accommodations but would also create more inclusive classroom environments for all the

students, especially the ones with learning disabilities. This is likely to have a significant impact in countries like India, where the whole process of obtaining diagnostic and certification services is often very slow and cumbersome, thus preventing people from accessing support that is legally required.

Another important issue that this point raises is the difficulty of having stakeholders endorse the project and being made aware of the problems. The literature on this topic suggests that parents, students, and school administrators are not very much informed about the legal rights and obligations under disability laws, and this, in turn, weakens accountability and restricts the use of the available protections (Kumar & Dixit, 2025). Information that is easy to reach about disability rights, grievance redress mechanisms, and educational entitlements could be a source of power for stakeholders and hence greatly the practical effectiveness of existing laws. In the U.S. context, advocacy and litigation have historically played a major role in the realization of IDEA provisions; however, researchers argue that the reliance on adversarial mechanisms may put families with fewer resources at a disadvantage, thus making it necessary for schools to adopt collaborative and preventive approaches (Raj, 2022).

The joint conclusion of the research studies is that the disabled persons' law, which prescribes educational access equivalent to that of nondisabled children, has a dependency on one's acceptance of the entire educational system's reform. Such legal frameworks can be sustained only through continued government financial support, the development of institutions that will be responsible for their implementation, the introduction of pedagogy that is welcoming for all children, and the changing of mindsets in educational systems. The policymakers and the practitioners are confronted with the challenge not only of providing legal safeguards but also, more importantly, to create everyday educational practices that will

foster the learning outcomes, participation, and eventually the continuity of the persons with learning disabilities in the quality of society and economy.

Conclusion

The aim of this paper was to evaluate the real impact of existing disability laws on educational access for individuals with learning disabilities, with specific reference to the Indian Rights of Persons with Disabilities Act, 2016 (RPwD Act) and the American Individuals with Disabilities Education Act (IDEA). The research was based solely on qualitative literature analysis. The study found that both legal frameworks are regarded as significantly positive steps in terms of both norm and institution, yet their power remains rather sporadic and dependent on external, very often non-legal factors. In this sense, the educational equity that was promised by the disability legislation has just been partly translated into reality.

Across the literature from both jurisdictions, the indispensable function of disability laws in the formal acknowledgment of learning disabilities as grounds for educational accommodation and support can be noted as a common theme. In India, the RPwD Act formed a big step towards a rights-based approach by categorizing different learning disabilities and mandating inclusive education in all educational institutions (Government of India, 2016). In the same way, the US has also long been establishing enforceable rights through the IDEA such as Free Appropriate Public Education and Individualized Education Programs, thus making public schools part of the daily life of disabled rights (U.S. Department of Education, 2017). The legal frameworks in question have opened the doors to education, created a stronger support system for students with disabilities and their families from the legal point of view. However, the whole analysis that has been done in the previous

parts of the study pointed out that, even though recognition and access through law, different educational outcomes might still occur. One of the major concerns mentioned in the studies was the gulf between the legislations purpose and its actual impact. India's problem areas in the implementation of the RPwD Act (Das & Sarkar, 2025; Vidhi Legal Policy Centre, 2024) include the unavailability of properly trained teachers, limited diagnostic capacity, inadequate funding and poor monitoring. Consequently, the goal of inclusive education remains largely unaccomplished, particularly in public schools and underprivileged areas. Even if the legal framework is modern, it can still be rendered powerless by unstable and inconsistent administration.

Conversely, the U.S. is favored with an enforcement system that is very comprehensive which comprises among others judicial oversight and the setting up of rules that allow families to challenge inadequate support under IDEA. A series of landmark court cases like *Endrew F. v. Douglas County School District*, has pointed out that law directly to the notion that educational benefits should not be just minimum and thus supporting a substantial notion of educational progress for the handicapped (U.S. Supreme Court, 2017). However, the literature reveals that the U.S. system is still imperfect and that the blacks, the poor and the areas with low school funding are the ones most affected by its imperfections. The above is corroborated by the findings that the won legal actions cannot reverse all of the inequalities that are systemic in nature and are inherent in the education systems (Gilmour, 2025).

Cross-examination reveals that the speed with which justice is administered is not solely related to having laws that are well-written but also to the presence of good institutions, learning methods and cultures that are supportive of learning. The two countries, India and the U.S. are alike in their adherence to the same practices, i.e., certification, documentation, and placement, giving scant regard to the quality of instruction, meaningful

accommodation, and long-term educational pathways for students with learning disabilities. The problem of diagnosis and legal procedures has been raised in both contexts as a factor that can lead to viewing inclusion merely as a bureaucratic exercise instead of a transformative educational practice due to the overemphasis placed on it (Rao et al., 2024).

The study's conceptual and theoretical framework presents the argument, among others, that the journey to educational equity passes through the concurrence of disability law and inclusive pedagogical approaches which are based on the social model of disability. The authors of the literature cited in this work argue that legal measures are most effective when they are complemented with teacher training, curriculum flexibility, Universal Design for Learning, and institutional support that is maintained over time. Conversely, without these supporting measures, disability laws—no matter how well crafted—will not be able to dismantle the deeply entrenched educational barriers or even improve the outcomes of learning disabled students to a significant extent.

Present Indian and US disability laws have managed to work only partly in the fields of access and protection. Besides, these regulations were not very helpful in closing the educational gaps. Their impact is largely limited by the existing systems, the different levels of implementation, and most importantly, the lack of integration of the law with educational practice. Nevertheless, this result does not imply that the legal frameworks are of little importance; on the contrary, it strengthens the assertion that the law is an indispensable condition for professional practice but not a total solution. The law concerning disability can reveal its liberating might only when coupled with sufficient institutional capacity, pedagogical innovation, and accountability mechanisms that place educational outcomes together with legal compliance as the top priority. It is indeed recommended that the future research consists in deeper comparative studies across more jurisdictions and a closer observation of how classroom practices aid or obstruct the relationship between law and

learning. Eventually, the effectiveness of the disability laws should not be judged merely by the measures of access or compliance but by the criterion whether the learning disabled have been empowered to take part, move forward, and be victorious in the educational systems on truly equal terms.

References

- Das, S., & Sarkar, R. (2025). Beyond compliance: Examining the realities of disability inclusion in Indian schools under the RPwD Act (2016). *Journal of Education, Society and Behavioural Science*, 38(6), 106–118. <https://journaljesbs.com/index.php/JESBS/article/view/1444>
- Gilmour, A. F. (2025). IDEA at 50: Ensuring access was the first step—now outcomes matter. *Education Next*. <https://www.educationnext.org/idea-at-50-landmark-federal-law-ensured-access-students-disabilities/>
- Government of India. (2016). *The Rights of Persons with Disabilities Act, 2016*. <https://legislative.gov.in/sites/default/files/A2016-49.pdf>
- Rao, S., Kalyanpur, M., & Pillay, J. (2024). Identifying and supporting students with learning disabilities in India: Policy and practice challenges. *Indian Journal of Psychiatry*, 66(4), 389–396. <https://pmc.ncbi.nlm.nih.gov/articles/PMC10461588/>
- U.S. Department of Education. (2017). *A guide to the Individuals with Disabilities Education Act*. <https://sites.ed.gov/idea/>
- U.S. Supreme Court. (2017). *Endrew F. v. Douglas County School District RE-1*, 580 U.S. 386. https://www.supremecourt.gov/opinions/16pdf/15-827_0pm1.pdf
- Vidhi Legal Policy Centre. (2024). *How can children with disabilities be meaningfully included in India's education framework?* <https://vidhilegalpolicy.in/research/how->

can-children-with-disabilities-be-meaningfully-included-in-indias-education-framework/

- CAST. (2018). *Universal design for learning guidelines version 2.2*. <https://udlguidelines.cast.org>
- Das, S., & Sarkar, R. (2025). Beyond compliance: Examining the realities of disability inclusion in Indian schools under the RPwD Act (2016). *Journal of Education, Society and Behavioural Science*, 38(6), 106–118. <https://journaljesbs.com/index.php/JESBS/article/view/1444>
- Gilmour, A. F. (2025). IDEA at 50: The landmark federal law ensured access for students with disabilities; now it's time to focus on outcomes. *Education Next*. <https://www.educationnext.org/idea-at-50-landmark-federal-law-ensured-access-students-disabilities/>
- Kumar, A., & Dixit, A. (2025). Legal recognition of invisible disabilities: Challenges in implementing RPwD Act protections for autism and learning disabilities. *Indian Journal of Legal Review*, 5(7), 889–901. <https://ijlr.iledu.in/legal-recognition-of-invisible-disabilities-challenges-in-implementing-rpwd-act-protections-for-autism-learning-disabilities-and-chronic-illnesses/>
- Raj, C. (2022). *IDEA's promise and limits in high-poverty schools*. Columbia Human Rights Law Review. https://blogs.law.columbia.edu/hrlr/files/2022/03/409_Raj-.pdf
- Ralte, L., & Hnamte, L. (2025). Right, policy and practice: Understanding RPwD Act, 2016 in the context of elementary education. *International Journal for Multidisciplinary Research*. <https://www.ijfmr.com/papers/2025/5/58737.pdf>
- Vidhi Legal Policy Centre. (2024). *How can children with disabilities be meaningfully included in India's education framework?* <https://vidhilegalpolicy.in/research/how->

can-children-with-disabilities-be-meaningfully-included-in-indias-education-framework/

- Das, S., & Sarkar, R. (2025). Beyond compliance: Examining the realities of disability inclusion in Indian schools under the RPwD Act (2016). *Journal of Education, Society and Behavioural Science*, 38(6), 106–118. <https://journaljesbs.com/index.php/JESBS/article/view/1444>
- Gilmour, A. F. (2025). IDEA at 50: The landmark federal law ensured access for students with disabilities; now it's time to focus on outcomes. *Education Next*. <https://www.educationnext.org/idea-at-50-landmark-federal-law-ensured-access-students-disabilities/>
- Kumar, A., & Dixit, A. (2025). Legal recognition of invisible disabilities: Challenges in implementing RPwD Act protections for autism, learning disabilities, and chronic illnesses. *Indian Journal of Legal Review*, 5(7), 889–901. <https://ijlr.iledu.in/legal-recognition-of-invisible-disabilities-challenges-in-implementing-rpwwd-act-protections-for-autism-learning-disabilities-and-chronic-illnesses/>
- Nath, S., & Rajak, R. (2025). Inclusive education and accessibility challenges under the RPwD Act, 2016. *Asian Journal of Education and Social Studies*, 51(10), 713–725. <https://www.journalajess.com/index.php/AJESS/article/download/2526/5960/3286>
- Raj, C. (2022). Poverty, inequality, and special education law. *Columbia Human Rights Law Review*, 53(2), 409–457. https://blogs.law.columbia.edu/hrlr/files/2022/03/409_Raj-.pdf
- Ralte, L., & Hnamte, L. (2025). Right, policy and practice: Understanding RPwD Act, 2016 in the context of elementary education. *International Journal for Multidisciplinary Research*. <https://www.ijfmr.com/papers/2025/5/58737.pdf>

- Vidhi Legal Policy Centre. (2024). *How can children with disabilities be meaningfully included in India's education framework?* <https://vidhilegalpolicy.in/research/how-can-children-with-disabilities-be-meaningfully-included-in-indias-education-framework/>
- Wells, M. B. (2025). Supporting students with disabilities: Discrepancies in educational outcomes and the need for comprehensive postsecondary support. *Journal of Disability Studies*. <https://link.springer.com/article/10.1007/s44217-025-00758-2>
- Das, S., & Sarkar, R. (2025). Beyond compliance: Examining the realities of disability inclusion in Indian schools under the RPwD Act (2016). *Journal of Education, Society and Behavioural Science*, 38(6), 106–118. <https://journaljesbs.com/index.php/JESBS/article/view/1444>
- Gilmour, A. F. (2025). IDEA at 50: The landmark federal law ensured access for students with disabilities; now it's time to focus on outcomes. *Education Next*. <https://www.educationnext.org/idea-at-50-landmark-federal-law-ensured-access-students-disabilities/>
- Government of India. (2016). *The Rights of Persons with Disabilities Act, 2016*. <https://legislative.gov.in/sites/default/files/A2016-49.pdf>
- Kumar, A., & Dixit, A. (2025). Legal recognition of invisible disabilities: Challenges in implementing RPwD Act protections for autism and learning disabilities. *Indian Journal of Legal Review*, 5(7), 889–901. <https://ijlr.iledu.in/legal-recognition-of-invisible-disabilities-challenges-in-implementing-rpwd-act-protections-for-autism-learning-disabilities-and-chronic-illnesses/>
- Nath, S., & Rajak, R. (2025). Inclusive education and accessibility challenges under the RPwD Act, 2016. *Asian Journal of Education and Social Studies*, 51(10), 713–

725.

<https://www.journalajess.com/index.php/AJESS/article/download/2526/5960/3286>

- Raj, C. (2022). Poverty, inequality, and special education. *Columbia Human Rights Law Review*, 53(2). https://blogs.law.columbia.edu/hrlr/files/2022/03/409_Raj-.pdf
- U.S. Department of Education. (2019). *A guide to the Individuals with Disabilities Education Act*. <https://sites.ed.gov/idea/>
- Vidhi Legal Policy Centre. (2024). *How can children with disabilities be meaningfully included in India's education framework?* <https://vidhilegalpolicy.in/research/how-can-children-with-disabilities-be-meaningfully-included-in-indias-education-framework/>
- Zirkel, P. A. (2017). The legal meaning of free appropriate public education. *Journal of Special Education Leadership*, 30(2), 77–86. <https://eric.ed.gov/?id=EJ1156379>
- Das, S., & Sarkar, R. (2025). *Beyond compliance: Examining the realities of disability inclusion in Indian schools under the RPwD Act (2016)*. *Journal of Education, Society and Behavioural Science*, 38(6), 106–118. <https://doi.org/10.9734/jesbs/2025/v38i61444> (JESBS)
- Kumar, A., & Dixit, A. (2025). *Legal recognition of invisible disabilities: Challenges in implementing RPwD Act protections for autism, learning disabilities, and chronic illnesses*. *Indian Journal of Legal Review (IJLR)*, 5(7), 889–901. (IJLR)
- Ralte, L., & Hnamte, L. (2025). *Right, policy and practice: Understanding RPwD Act, 2016 in the context of elementary education*. *International Journal for Multidisciplinary Research (IJFMR)*. (IJFMR)
- Nath, S., & Rajak, R. (2025). *Inclusive education and accessibility challenges under the RPwD Act, 2016*. *Asian Journal of Education and Social Studies*, 51(10), 713–725. (Asian Journal of Education)

- Vidhi Legal Policy Centre. (2024). *Towards an inclusive education framework in India*. Retrieved from Vidhi Legal Policy Centre. ([Vidhi Legal Policy](#))
- Gilmour, A. F. (2025). *IDEA at 50: The landmark federal law ensured access for students with disabilities; now it's time to focus on outcomes*. *Education Next*. ([Education Next](#))
- Wells, M. B. (2025). *Supporting students with disabilities: Discrepancies in educational outcomes and the need for comprehensive postsecondary support*. *Journal of Disability Studies*. ([Springer Nature Link](#))
- United States Supreme Court. (2017). *Endrew F. v. Douglas County School District RE-1*, 580 U.S. 386. ([Wikipedia](#))
- Inclusive education research brief. (2023). *The Evidence for Inclusive Education*. University of Nebraska–Lincoln. ([Nebraska MTSS](#))
- Universal design for instruction. (n.d.). In *Wikipedia*. Retrieved from https://en.wikipedia.org/wiki/Universal_design_for_instruction ([Wikipedia](#))
- Bhan, S., & Mahajan, R. (2017). Specific learning disabilities: Issues that remain unanswered. *Indian Journal of Psychological Medicine*, 39(4), 399–405. https://doi.org/10.4103/IJPSYM.IJPSYM_86_17
- Connor, D. J., & Ferri, B. A. (2020). Reframing disability and special education: The question of equity. *Teachers College Record*, 122(3), 1–28. <https://journals.sagepub.com/doi/10.1177/016146812012200307>
- Government of India. (2016). *The Rights of Persons with Disabilities Act, 2016*. https://legislative.gov.in/sites/default/files/A2016-49_1.pdf
- Mehrotra, N. (2019). Disability, rights, and the law in India. *Disability Studies Quarterly*, 39(2). <https://dsq-sds.org/article/view/6486>

- Singal, N. (2020). Inclusive education in India: Policy, pedagogy and practice. *International Journal of Inclusive Education*, 24(5), 1–15. <https://doi.org/10.1080/13603116.2018.1516822>
- U.S. Department of Education. (2019). *A guide to the Individuals with Disabilities Education Act*. <https://sites.ed.gov/idea/about-idea/>
- Yell, M. L., Rogers, D., & Lodge Rogers, E. (2019). The legal history of special education: What a long, strange trip it's been! *Remedial and Special Education*, 40(6), 356–366. <https://doi.org/10.1177/0741932519827724>
- Zirkel, P. A. (2017). The legal meaning of “appropriate” in special education. *Journal of Law & Education*, 46(1), 1–26. <https://law.lclark.edu/live/files/24407-jle461zirkelpdf>
- Arstein-Kerslake, A., & Flynn, E. (2017). The general comment on Article 12 of the Convention on the Rights of Persons with Disabilities: A roadmap for equality before the law. *International Journal of Human Rights*, 21(4), 471–490. <https://doi.org/10.1080/13642987.2017.1297634>
- Epp, C. R. (2010). *Making rights real: Activists, bureaucrats, and the creation of the legalistic state*. University of Chicago Press. <https://press.uchicago.edu/ucp/books/book/chicago/M/bo8640565.html>
- UNESCO. (2020). *Global education monitoring report 2020: Inclusion and education – All means all*. <https://www.unesco.org/gem-report/en/2020>
- United Nations. (2006). *Convention on the Rights of Persons with Disabilities*. <https://www.un.org/development/desa/disabilities/convention-on-the-rights-of-persons-with-disabilities.html>
- Ainscow, M., Booth, T., & Dyson, A. (2006). Improving schools, developing inclusion. *Routledge*. <https://doi.org/10.4324/9780203967157>

- Government of India. (2016). *The Rights of Persons with Disabilities Act, 2016*. https://legislative.gov.in/sites/default/files/A2016-49_1.pdf
- Meyer, A., Rose, D. H., & Gordon, D. (2014). *Universal design for learning: Theory and practice*. CAST Professional Publishing. <https://udlguidelines.cast.org>
- Oliver, M. (1990). *The politics of disablement*. Macmillan. <https://disability-studies.leeds.ac.uk/wp-content/uploads/sites/40/library/Oliver-politics.pdf>
- Oliver, M. (1996). *Understanding disability: From theory to practice*. Macmillan. <https://disability-studies.leeds.ac.uk/wp-content/uploads/sites/40/library/Oliver-understanding-disability.pdf>
- Shakespeare, T. (2014). *Disability rights and wrongs revisited*. Routledge. <https://doi.org/10.4324/9781315887456>
- United Nations. (2006). *Convention on the Rights of Persons with Disabilities*. <https://www.un.org/development/desa/disabilities/convention-on-the-rights-of-persons-with-disabilities.html>
- Unterhalter, E. (2009). What is equity in education? Reflections from the capability approach. *Studies in Philosophy and Education*, 28(5), 415–424. <https://link.springer.com/article/10.1007/s11217-009-9135-4>
- U.S. Department of Education. (2017). *A guide to the Individuals with Disabilities Education Act*. <https://sites.ed.gov/idea/about-idea>
- Yell, M. L., Rogers, D., & Lodge Rogers, E. (1998). The legal history of special education: What a long, strange trip it's been! *Remedial and Special Education*, 19(4), 219–228. <https://journals.sagepub.com/doi/10.1177/074193259801900405>
- Artiles, A. J., Kozleski, E. B., Trent, S. C., Osher, D., & Ortiz, A. (2011). Justifying and explaining disproportionality, 1968–2008: A critique of underlying views of

culture. *Exceptional Children*, 76(3), 279–299.

<https://doi.org/10.1177/001440291007600303>

- Government of India. (2016). *The Rights of Persons with Disabilities Act, 2016*.
https://legislative.gov.in/sites/default/files/A2016-49_1.pdf
- Singal, N. (2016). Education of children with disabilities in India and Pakistan: An analysis of developments since 2000. *Background paper prepared for the Education for All Global Monitoring Report*. UNESCO.
<https://unesdoc.unesco.org/ark:/48223/pf0000244046>
- Singal, N., & Muthukrishna, N. (2014). Education, childhood and disability in countries of the South: Re-positioning the debates. *Childhood*, 21(3), 293–307.
<https://doi.org/10.1177/0907568214522800>
- Snowling, M. J. (2013). Early identification and interventions for dyslexia: A contemporary view. *Journal of Research in Special Educational Needs*, 13(1), 7–14.
<https://doi.org/10.1111/j.1471-3802.2012.01262.x>
- United Nations. (2006). *Convention on the Rights of Persons with Disabilities*.
<https://www.un.org/development/desa/disabilities/convention-on-the-rights-of-persons-with-disabilities.html>
- U.S. Department of Education. (2019). *A history of the Individuals with Disabilities Education Act*. <https://sites.ed.gov/idea/about-idea/>